

Court No. - 29

Case :- WRIT - C No. - 32911 of 2019

Petitioner :- Smt. Rama Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Raj Narayan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

Heard Shri Raj Narayan, learned counsel for petitioner and Shri Baleshwar Chaturvedi, learned counsel for respondent No. 4.

The petitioner has filed this petition so as to challenge the recovery citation dated 31.07.2019 for a sum of Rs. 2,23,700/- + interest as electricity dues.

After some argument, the learned counsel for petitioner submits that the petitioner is ready and willing to pay the entire amount as demanded provided some reasonable time is allowed and instalments are fixed and in the meantime her electricity supply is restored.

The petitioner for the above purpose can approach the Executive Engineer concerned i.e. respondent No. 4 in accordance with Clause - 6.14 of the U.P. Electricity Supply Code, 2015.

In view of the aforesaid facts and circumstances of the case, we dispose off the writ petition with liberty to the petitioner to make a representation in this regard before the respondent No. 4 within a period of two weeks from today. In case any such representation is filed the respondent No. 4 shall consider the same and decide it in accordance with law most expeditiously preferably within a period of one month.

It is further observed that in case petitioner deposits Rs. 75,000/- (seventy five thousand of rupees), the Executive Engineer shall consider the immediate restoration of her electricity connection and fix instalments for the remaining amount.

With aforesaid observations, the writ petition is disposed off.

Order Date :- 19.10.2019

LBV